

ANNEX N

NON-INTERDICTION AND MARITIME TRANSIT INTEGRITY PROTOCOL

*Modular Annex – May be Incorporated by Reference into Any
Existing or Future Framework*

Date: May 29, 2026

**CLASSIFICATION: AUTHORIZED
NEGOTIATORS ONLY – DRAFT FOR
CONSIDERATION**

[Seal / Emblem]

PREAMBLE

Purpose. To resolve the core dispute over the authority to halt, board, delay, or deny transit to commercial vessels in the Strait of Hormuz on the basis of non-payment of or dispute over transit fees, navigational service charges, tolls, or similar levies.

Modularity Clause. This Annex is self-contained and may be incorporated into any existing or future agreement between the Parties by a single sentence of adoption. It does not amend or supersede conflicting provisions of any parent framework unless the Parties explicitly so agree. In the event of inconsistency, this Annex governs with respect to the specific subject matter of interdiction and transit integrity.

ARTICLE 1: DEFINITIONS

"Interdiction" – Any act of halting, boarding, inspecting, delaying, diverting, denying transit to, or otherwise interfering with a commercial vessel.

"Commercial vessel" – Any vessel engaged in the transport of goods, energy, or passengers for commercial purposes, excluding military vessels and government-owned non-commercial vessels.

"Transit fee" – Any charge, toll, levy, or "navigational service fee" imposed as a condition of passage through the Strait of Hormuz.

"PGSA" – The Persian Gulf Strait Authority, or any successor or affiliated entity exercising similar functions.

"Civilian vessel" – Any vessel operated by or under the authority of the PGSA, Iranian Coast Guard, port authority, or any non-military Iranian government entity.

ARTICLE 2: ABSOLUTE PROHIBITION ON INTERDICTION

No Party, nor any entity acting on its behalf, shall interdict any commercial vessel transiting the Strait of Hormuz on the basis of:

1. Non-payment or alleged non-payment of any prohibited toll, fee, or levy;
2. Past financial or administrative disputes regarding regional port or transit authorities;
3. Failure to comply with any unilateral financial registration requirement.

Exceptions: None. This prohibition is absolute and non-derogable. No "safety inspection," "documentation review," or "administrative hold" may be used as a pretext to circumvent this prohibition.

SOLAS Safeguard: Nothing in this Article shall be construed as impairing obligations under the International Convention for the Safety of Life at Sea (SOLAS), 1974, as amended. Actions taken solely to address genuine maritime emergencies — such as a vessel in distress, actively on fire, sinking, or posing an imminent threat to life at sea — remain permitted, provided such actions are not used as a mechanism to enforce compliance with any economic, administrative, or fee-related requirement. The burden of demonstrating that an intervention was motivated solely by bona fide safety concerns, and not by enforcement of a transit fee or administrative sanction, rests with the interdicting Party or entity.

ARTICLE 3: ABSOLUTE PROHIBITION ON TRANSIT TOLLS AND LEVIES

Prohibition of Levies:

No Party, nor any regional authority acting on its behalf (including but not limited to the PGSA), shall assess, demand, or impose any transit fee, toll, navigational service charge, or safety levy of any kind upon commercial vessels utilizing the Hormuz Transit Zone.

Freedom of Navigation:

Passage through the Strait of Hormuz shall be entirely unencumbered by financial obligations, administrative tariffs, or fiscal demands.

Decoupling of Services:

Any navigational aids, safety broadcasts, or rescue services provided by a littoral state shall be treated as standard obligations under international maritime law and shall not be tied to any fee collection mechanism, past or present.

ARTICLE 4: UNIFORM VESSEL PROTOCOL (CLOSING THE CIVILIAN LOOPHOLE)

All Iranian vessels operating in the Hormuz Transit Zone, regardless of designation or uniform, shall be subject to the same rules regarding stand-off distances, AIS broadcasting, and non-interdiction as military vessels under any existing framework.

This includes, but is not limited to:

- Persian Gulf Strait Authority (PGSA) vessels
- Iranian Coast Guard vessels
- Iranian port authority vessels
- Any civilian vessel acting under the authority of or coordination with the PGSA or Iranian government

Important: No distinction shall be made between "military" and "civilian" enforcement for purposes of this Annex.

ARTICLE 5: UNITED STATES NON-INTERVENTION COMMITMENT

The United States affirms that its naval forces shall not use kinetic or coercive measures to enforce compliance with any transit fee, navigational service charge, or similar levy.

U.S. naval forces may intervene in the Hormuz Transit Zone only for:

1. Verified threats to navigation safety (e.g., vessel in distress, collision avoidance);
2. Acts of piracy as defined under international law (UNCLOS Article 101);
3. Responses to a specific, imminent, and verified armed attack.

U.S. naval forces shall not:

- Intervene in disputes between vessel operators and littoral states over administrative or financial matters;
- Use the threat of intervention to compel payment of fees;
- Act as debt collectors for any regional authority.

ARTICLE 6: DISPUTE RESOLUTION

Any dispute arising from the interpretation or enforcement of this Annex shall be resolved through binding arbitration under the Permanent Court of Arbitration (PCA) in The Hague.

- **Arbitration panel:** Three members (one appointed by each Party, one neutral appointed by the PCA Secretary-General).
- **Timeline:** Ruling shall be issued within 30 days of the filing of the dispute.
- **Standstill:** No unilateral coercive action, including military or economic measures, shall be taken by either Party pending the arbitration ruling.

ARTICLE 7: INCORPORATION BY REFERENCE

This Annex may be incorporated into any existing or future agreement between the Parties by the following sentence:

"The Parties adopt Annex N (Non-Interdiction and Maritime Transit Integrity Protocol) as an operative provision of this Agreement. In the event of any inconsistency, Annex N shall govern with respect to the interdiction of commercial vessels and the separation of fee collection from transit monitoring."

No further amendment of the parent framework is required. This Annex enters into force upon the later of:

1. Signature by both Parties; or
2. The effective date of the parent framework into which it is incorporated.

ARTICLE 8: PROVISIONAL APPLICATION

The Parties may agree to apply this Annex provisionally for a period of 90 days, pending formal ratification or incorporation into a parent framework.

- Provisional application shall be effected by an exchange of diplomatic notes.
- During provisional application, all provisions of this Annex shall be operative and binding.
- Either Party may terminate provisional application with 14 days' written notice.

ARTICLE 9: SEVERABILITY

If any provision of this Annex is found by a court of competent jurisdiction or arbitral panel to be unenforceable, the remaining provisions shall remain in full force and effect.

The Parties shall promptly negotiate a replacement for any provision found unenforceable, preserving the original intent to the maximum extent possible.

ARTICLE 10: DURATION AND WITHDRAWAL

This Annex shall remain in force indefinitely, unless:

1. Both Parties agree in writing to terminate it; or
2. The parent framework into which it is incorporated terminates, and the Parties do not reaffirm this Annex within 90 days of such termination.

Important: Withdrawal from this Annex without withdrawal from the parent framework is not permitted. This Annex is integral to the transit integrity architecture and may not be severed unilaterally.

SIGNATURE PAGE

For the Islamic Republic of Iran:

Name:

Title:

Date:

For the United States of America:

Name:

Title:

Date:

Witnessed by (if applicable):

Sultanate of Oman

Swiss Confederation

Other (specify)

This Annex enters into force upon signature by both Parties or upon incorporation by reference into a parent framework, whichever occurs later.